

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

CIVIL REVISION NO. 2942 OF 2009

In the matter of:

An application under Section 115(1) of the Code of
Civil Procedure, 1908.

AND

In the matter of:

Mohammad Ali and others

.... Petitioners

-Versus-

Md. Sadek Dewan, son of late Madhu Dewan and
others.

....Opposite-parties

Mr. Md. Faruque Ahammed, Senior Advocate with
Mr. M.A. Mannan Bhuiyan and
Mr. Kawsar Ahmed, Advocates

... For the petitioners

Mr. Md. Aminul Islam with
Ms. Sultana Akter Rubi and
Mr. Mohammad Shahin Mia, Advocates

...For the opposite-party nos. 1-2 and

opposite-party nos. 52-55

**Heard on 23.10.2024, 28.10.2024 and
03.11.2024.**

Judgment on 03.11.2024.

Present:

Mr. Justice Md. Mozibur Rahman Miah

And

Mr. Justice Md. Bashir Ullah

Md. Mozibur Rahman Miah, J:

At the instance of the defendant nos. 3-8 and 21-23, this rule was issued calling upon the opposite-parties to show cause as to why the judgment and decree dated 31.03.2009 (decree signed on 07.04.2009) passed by the learned Additional District Judge, 5th court, Dhaka in Title Appeal No. 109 of 2003 (which was heard along with Title Appeal Nos. 103 of 2003 and 98 of 2003) disallowing the appeal and thereby modifying the judgment and decree dated 22.02.2003 passed by the learned Joint District Judge, 1st Court, Dhaka in Title Suit No. 207 of 1988 should not be set aside and/or such other or further order or orders passed as to this Court may seem fit and proper.

At the time of issuance of the rule, operation of the judgment and decree dated 31.03.2009 passed in Title Appeal No. 109 of 2003 was stayed for a period of 3(three) months which was lastly extended on 31.01.2010 till disposal of the rule.

Mentionable, on the date of issuance of the above rule, another rule was issued at the instance of the said defendants challenging the judgment and decree passed by the same court in Title Appeal No. 98 of 2003 brought by the defendant nos. 41-44 as appellants which was registered as Civil Revision No. 2938 of 2009 and it was ordered to hear the revision analogous with the instant one by rule issuing order dated 09.08.2009. However, on the prayer of the petitioners for discharging the rule for non-prosecution, the rule in Civil Revision No. 2938 of 2009 was discharged by this court on 28.10.2024.

In any event, the salient facts so figured for issuance of the instant rule are:

The present opposite-party nos. 1-2 as plaintiffs originally filed a suit being Title Suit No. 207 of 1988 in the 1st Court of Joint District Judge, Dhaka for partition simpliciter measuring an area of 1.9648 acres of land as 6 *anna* 9 *ganda* shares out of total 7.74 acres of land. The case of the plaintiffs in precise is that, two full brothers namely, Dhanu Dewan and Gani Dewan jointly belonged to 7.74 acres of land in C.S. Khatian No. 180 comprising Plot Nos. 816, 838, 930, 931, 944 and 895. While those two brothers had been enjoying title and possession over that land in equal share, they sold out 2.86 acres of land of Plot No. 985 to one, Ushan Bepari. Thereafter, while those two brothers retained remaining 4.88 acres of land after transfer of 2.86 acres of land, Gani Dewan died leaving behind one son, Mahabbat Ali Dewan, one daughter, Nesa Bibi who got $1.62\frac{2}{3}$ and $.81\frac{1}{3}$ acres of land respectively as heirs. Then Mahabbat and Nesa Bibi transferred their entire share they got in Plot No. 816 to one, Ushan Bepari. The said property was subsequently got by defendant nos. 19-20 by successive transfers from Ushan Bepari. Mahabbat Dewan and Nesa Bibi then transferred .77 acres of land out of Plot No. 383 to Ushan Bepari and Anu Bepari in equal share which was subsequently got by defendant no. 19, Nasir Uddin Dewan in whose favour possession was delivered. On the other hand, Dhanu Dewan transferred 70 decimals of land by *heba* deed dated 13.06.1951 to his daughter, Zulekha Bibi. Then Zulekha Bibi by two sale deeds both dated 23.09.1974 transferred said 70 decimals of land to the plaintiffs and handed over possession. Abdul

Majid Dewan then transferred half of his share of land out of $52\frac{1}{2}$ decimals to plaintiff no. 1 and the rest vide sale deed dated 21.07.1991 to defendant nos. 41-44.

Subsequently, the heirs of Gani Dewan transferred their share in respect of five suit Plots totaling 96 decimals to one, Sainuddin and Afzal Hossain. Sainuddin then transferred his share of purchased land that is, $22\frac{1}{4}$ decimals to one, Ayet Ali, Waz Ali and Hakim Uddin and rest $22\frac{1}{2}$ decimals to defendant nos. 3 and 21 and one, Neyat Ali by two sale deeds both dated 02.12.1966. Then, Ayet Ali and Kakim uddin transferred their purchased land to plaintiff no. 1 by two sale deeds dated 17.11.1972 and 18.11.1972. After the demise of Waz Ali, his heirs, Abul Hashem and others then transferred their share of land by three sale deeds all dated 17.11.1972 to the plaintiff no. 1. Then Neyat Ali transferred his purchased $7\frac{5}{12}$ decimals of land on 17.11.1972 to the plaintiff no. 1. That, Sainuddin then transferred his rest $3\frac{1}{2}$ decimals of land on 27.12.1974 to plaintiff no.

1. The heirs of Reazuddin then transferred $15\frac{2}{5}$ decimals of land to defendant nos. 3-4 by sale deed dated 08.12.1966 and rest of their share to plaintiff no. 1. In the aforesaid way, the plaintiffs acquired $1.96\frac{1}{2}$ acres of land and have since been enjoying possession by mutating their name in the record of right and thus prayed for *saham* on refusal to give *saham* amicably by the defendants in the month of May, 1988.

That the defendant nos. 3-8, 21-23 (predecessors of the petitioners) and those of the defendant nos. 10-13, 14(ka)-14(cha) and defendant nos. 15-17 contested the suit by filing separate sets of written statement denying all the material averments so made in the plaint contending *inter alia* that, Gani Dewan and Dhanu Dewan were the original owners of the suit land and Gani Dewan died leaving behind his son, Mahabbat Dewan and daughter, Moti Nessa and both of them sold a total area of 2.08 acres of land (1.73 acres of land from Plot No. 838, 930, 931, 944 and 945 and 35 decimals of land from Plot No. 895) to Afjal Hossain and Sainuddin Bepari vide sale deed dated 26.02.1942. Thereafter, the said land was purchased by Nessa Bibi (wife of Dhanu Dewan), Alesa (daughter of Dhanu Dewan) and Riazuddin (son-in-law of Dhanu Dewan) on 12.10.1950. Dhanu Dewan also sold 77 decimals of land from Plot No. 838 to plaintiff's father, Madhu Dewan vide registered deed dated 15.11.1952 and after the death of Madhu Dewan his heirs owned and possessed his shares. It has been also stated that, Dhanu Dewan gifted some land to his wife, Nessa Bibi and grandson, Abdul Majid vide *heba* deed dated 26.05.1951, though due to mistake of the scribe, Plot No. 838 was mentioned in that deed yet the heirs of Madhu Dewan kept on possessing said 77 decimals of land of Plot No. 838. However, to deprive his brothers and sisters and other co-sharers, plaintiff no. 1 created some forge deeds. After the death of Dhanu Dewan, his some land was inherited by his wife, Nessa Bibi, 2 daughters Ales and Zulekha and only minor grandson, Majid Dewan. Then Rabeya Khatoon, the mother of Majid Dewan a minor, then got her appointed as his legal guardian vide

Guardianship Case No. 164 of 1967 and Rabeya Khatoon also got permission to sell minor's property vide Permission Case No. 139 of 1967 who being a guardian of her minor son, Majid Dewan sold $47\frac{3}{4}$ decimals of land to the defendant nos. 3-8 and 21-23 vide two deeds dated 06.06.1968 and handed over possession from suit Plot Nos. 930, 931, 944 and 945. After the death of Riazuddin, his 6 sons, Arjot Ali and others and his wife, Alesa Bibi sold $15\frac{3}{4}$ decimals of land to defendant nos. 3-8 and 21-23 on 08.12.1962 and they also sold $3\frac{1}{2}$ decimals of land to defendant no. 22. On the other hand, Sainuddin sold 15 decimals of land to defendant nos. 3 and 21 vide deed dated 01.12.1966. Defendant no. 8 also purchased $5\frac{1}{2}$ decimals of land from defendant no. 19. It has also been stated that, the plaintiffs and the defendants have been possessing their respective shares as per amicable partition and there is no cause of action to file the suit and as such, the suit is liable to be dismissed also by making an alternative prayer that if the suit is decreed, then the defendants are entitled to *saham* in the suit land for an area of 87 decimals.

On the other hand, the defendant nos. 41-44 (herein the opposite-party nos. 52-55) entered appearance and prayed for *saham* for $29\frac{1}{2}$ decimals of land claimed to have purchased from Abdul Mazid and the defendant nos. 47-48.

In order to dispose of the suit, the learned Joint District Judge framed five different issues. And in support of the respective case, the

plaintiff examined 4 witnesses and produced a raft of documents which were marked as exhibit nos. 1 to 5(ga). On the other hand, defendants including defendant nos. 3-8 and 21-23-petitioners examined 7 witnesses as D.W-1 to D.W-7.

Apart from that, the defendants-petitioners produced several documents which were marked as exhibit nos. 'ka' – 'cha(8)' while defendant nos. 41-44 produced documents which were marked as exhibit- 'ka(1)' to 'kha(2)'. Likewise, the defendant nos. 10-13, 14(ka) to 14(kha) and defendant nos. 15-17 produced a slew of documents which were also marked as exhibit nos. 'ka(1)(1)'-'uma(1)(2)'.

The learned Joint District Judge, 1st court, Dhaka upon considering evidence and materials on record ultimately by his judgment and decree dated 22.02.2003 decreed suit on contest against the defendant nos. 3-8, 21-23, 10-13, 14(ka)-14(kha), 15-17 and defendant nos. 41-44 and *ex parte* against the rest giving *saham* to the plaintiff for an area of $1.96\frac{1}{2}$ acres of land.

Being aggrieved by and dissatisfied with the said judgment, three sets of appeals have been preferred by three sets of defendants before the learned District Judge, Dhaka being Title Appeal No. 98 of 2003 preferred by the defendant nos. 41-44, Title Appeal No. 103 of 2003 by defendant nos. 9-10, 14(ka)-14(cha) and Title Appeal No. 109 of 2013 by defendant nos. 3-8 and 21-23 (being the petitioners here). However, all the three appeals were on transfer heard analogously by the learned Additional District Judge, 5th Court, Dhaka.

However, during hearing, the appellants of Title Appeal No. 103 of 2003 (preferred by the defendant nos. 9-10 and 14(ka) to 14(cha) prayed that, they would not proceed with the appeal and the same was thus rejected for non-prosecution. However, the learned Judge of the appellate court below by his judgment and decree dated 31.03.2009 dismissed the Title Appeal No. 109 of 2003 preferred by the defendant nos. 3-8/21-23 (herein petitioners) though allowed the Title Appeal No. 98 of 2003 so preferred by defendant nos. 41-44 granting them *saham* for $29\frac{1}{4}$ decimals of land.

Feeling dissatisfied with the said judgment and decree, the appellants of Title Appeal No. 109 of 2003 (defendant nos. 3-8 and 21-23) filed two Civil Revisions being the instant Civil Revision and Civil Revision No. 2938 of 2009 challenging the judgment and decree for giving *saham* to the defendant nos. 41-48 on allowing Title Appeal No. 98 of 2003. However, at the time of taking up for hearing the rule, the petitioners prayed that, they would not proceed with the rule of Civil Revision No. 2938 of 2009 conceding *saham* given to the defendant nos. 41-48 and this court then discharged the rule for non-prosecution vide order dated 28.10.2024.

Mr. Md. Faruque Ahammed, the learned senior counsel along with Mr. M. A. Mannan Bhuiyan, the learned counsel appearing for the petitioners upon taking us through the impugned judgment and all the relevant documents appeared in the Civil Revision at the very outset submits that, admittedly Dhanu Dewan acquired 1.73 acres of land but he transferred a total area of 2.52 acres of land (1.05 acres of land vide

Exhibit- 2, .70 acres vide Exhibit- 2(kha) and .77 acres vide Exhibit- 2(umo) and as such, he transferred .79 acres of land in excess for which the plaintiffs must seek declaration of title in the suit but on the other hand, the deed of Zulekha was never acted upon and she never got possession and the same land always possessed by Dhanu Dewan for which he subsequently sold the same to Madhu Dewan vide registered deed dated 15.11.1952 and handed over possession in Plot No. 838 and record of right was also prepared in the name of Madhu Dewan and after the death of Madhu Dewan said land was inherited by his sons and daughters while the plaintiffs and the defendants by admitting their title purchased the said land from them, so the plaintiff cannot get $(.35+.35)=.70$ acres of land from Zulekha but both the courts below allotted same in favour of the plaintiffs and as such, they committed error of law resulting in an error in the decision occasioning failure of justice even in allotting said .70 acres of land in favour of the plaintiffs.

The learned counsel further contends that, none of the courts below ever considered that, the defendants-petitioners in spite of proving their case as asserted in paragraph nos. 'chha' (ख) to 'tha' (ठ) to the written statement, has not given *saham* in respect of 87 decimals of land and thereby committed an error of law which occasioned failure of justice.

The learned counsel goes on to submit that, the plaintiffs have miserably failed to prove the genuineness of exhibit-'2(ka)', the *Heba-bil-Awaz* deed dated 13.06.1951 as Awaz (exchange) could not be proved and therefore, the said deed has not been acted upon resulting in 68 decimals of land allotted for plaintiffs should have been kept as residuary and on

that score, the learned Judge of both the courts below committed an error of law by giving *saham* as prayed by the plaintiffs.

The learned counsel wrapped up his submission contending that, the title documents so have been described in paragraph ‘chha’ (ছ) to ‘tha’ (ঠ) to the written statement has not been taken into account by the learned Judges of the courts below and had those considered properly, these petitioners would have gotten *saham* for 87 decimals of land and finally prays for making the rule absolute.

Conversely, Mr. Md. Aminul Islam, the learned counsel appearing for the opposite-party nos. 1-2 (plaintiffs) and opposite-party nos. 52-55 (defendant nos. 41-44 in the original suit) vehemently opposes the contention taken by the learned counsel for the petitioners and submits that, both the learned Judges of the courts below upon exhaustive discussion on materials and evidence on record decreed the suit vis-à-vis gave *saham* to the defendant nos. 41-44 by the appellate court below which has not been controverted in a slightest manner by the petitioners in the entire revision resulting in, the rule is liable to be discharged.

In reference to the submission made by the learned counsel for the petitioner with regard to the validity of the *heba* deed dated 13.06.1951 (exhibit-‘2(kha)’), the learned counsel then candidly asserts that first of all, no objection was raised by the defendants-petitioners when the said deed was taken into evidence by marking it exhibit and secondly, after withdrawing Title Appeal No. 103 of 2003 by the defendant nos. 9-10 and 14(ka)-14(cha) such submission rather sounds superfluous.

The learned counsel by referring to paragraph 'ta' (त) to the written statement of the defendants-petitioners also submits that, the breakdown so have been set out in that paragraph claiming to acquire 87 decimals of land in different quantum and from different plots are totally vague and not backed by any documents and the learned Judge of the trial court is thus very much justified in disbelieving such claim and perfectly right in not awarding any *saham* to them.

The learned counsel next contends that, though the petitioners also based their claim on different sale deeds as specified in paragraph nos. 'chha' (छ) to 'ta' (त) but not a single deed mentioned in these paragraphs have ever been produced let alone marked as exhibit and thus the trial court has rightly rejected their prayer for *saham* and decreed the suit.

The learned counsel by referring to the evidence of the defendants witnesses then asserts that though the petitioners relied upon the evidence of D.W.-1, D.W-3 and D.W-5 but none of them proved their case and both the courts below found so in their respective judgment which remains uncontroverted in the instant revision and therefore, rule is liable to be discharged.

The learned counsel wrapped up his submission contending that, it is the universal proposition that, plaintiff is to prove its own case without depending on the weakness of the defendant's case and in the instant case, the plaintiffs by adducing 4 witnesses have categorically proved their case by exhibiting all their title documents when both the courts below in their respective judgment elaborately discussed so and decreed the suit when

the defendants failed to discard the finding even by taking any point to the contrary in the instant revision and thus the rule is liable to be discharged.

Be that as it may, we have considered the submission of the learned counsel for the contending parties, perused the impugned judgment vis-à-vis the documents lying with the lower court records very meticulously.

Since the petitioners gave up their claim so acquired by the defendant nos. 41-44 in Title Appeal No. 109 of 2003 by non-prosecuting rule they obtained in Civil Revision No. 2938 of 2009, so we would like to confine our discussion and observation keeping our discussion and observation within the limited arena to examine whether the courts below have committed any error of law in the judgment and decree passed concurrently decreeing the suit.

Together, the petitioners have been able to prove their case in getting *saham* in respect of .87 acres of land, they claimed.

It is the definite case of the plaintiffs that an area of 1.05 acres of land was acquired by Nessa Bibi and Abdul Mazid in equal share through a deed of *heba* executed by one of the C.S recorded tenants, Dhanu Dewan on 26.05.1951 (exhibit-‘2’) though it is admitted by the parties to the suit. Then Dhanu Dewan by another deed of *heba* dated 13.06.1951 (exhibit-‘2(ka)’) transferred 68 decimals of land in favour of his daughter, Zulekha Bibi and thereby exhausted his share in the suit plot that is, 1.73 acres of land in 5 different plots in C.S. Khatian No. 180. The plaintiff nos. 1-2 then got that 68 decimals of land from Zulekha by two registered sale deeds (exhibit nos. 2(ga) and 2(gha)) dated 26.09.1974. The plaintiff no. 1 then got another 24 decimals of land from Abdul Mazid by

registered sale deed dated 13.05.1987 and thereby the plaintiffs got a total area of 92 decimals of land.

Aside from the above perspective of acquiring share, the plaintiffs also claimed to have acquired share for a total area of $118\frac{1}{4}$ acres of land from the heirs of another C.S. recorded tenant, Gani Dewan through several deeds which were also marked exhibits without any objection from defendant's side.

We have also very meticulously gone through the evidence especially adduced and produced by the plaintiffs vis-à-vis examined the judgment of the courts below and find that both the learned Judges, in their respective judgment have elaborately discussed each and every witnesses and the documents produced by the parties to the suit in their judgment. However, the learned Judges did not find any inconsistency in the chain of title claiming *saham* by the plaintiffs in the suit land nor the defendants could make any deviation to the contrary.

Further, since the instant revision has been filed by the defendants-petitioners against concurrent findings of facts arrived at by the courts below and the facts remains, one set of defendants being defendant nos. 9-10 and 14(ka)-14(cha) have withdrawn their claim in Title Appeal No. 103 of 2003 and the petitioners also acceded to the claim of the defendant nos. 41-48 by non-prosecuting Civil Revision No. 2938 of 2009 so surely, burden lies heavily upon the petitioner to prove errors of passing decree in favour of the plaintiffs by the courts below -which remains only the point-in-issue in the rule. However, from the trend of submission made by the learned counsel for the petitioners, it appears to us, the learned counsel

put his entire emphasis on asserting claim of the petitioners over 87 decimals of land other than dismissing plaintiffs' suit by pointing defect/error committed by the courts below. But on going through the written statement especially paragraph nos. 'chha' (ख) to 'tha' (ठ) to it, we don't find the defendants have been at all able to prove their acquiring title over 87 decimals of land as per their such assertion when the learned counsel for the plaintiffs-respondents have rightly pointed out that no deed has been produced in support of claim made in those paragraphs which we find to be true on perusing the LCR.

Then again, though the petitioners claimed that the suit cannot be entertained without declaration of title but when we pose a question to assert that point, the learned counsel then candidly submits that he would not press that point as it is now settled by our Appellate Division that in a partition suit no such declaration is necessary though we appreciate such frank submission of the learned counsel.

Also, we have examined the evidence so read out by the learned counsel for the petitioners and find that all the four P.Ws corroborated each other to prove the plaintiff's case and they proved acquiring 1.9648 acres of land by the plaintiffs through the documents exhibited as exhibit- '1'- '5(ga)' without any deviation by the defendants.

In contrast, though the defendants examined 7 witnesses but none of them ever asserted the claim of the defendants-petitioners over their acquiring 87 decimals of land nor they proved that the plaintiffs-respondents have not enjoyed their claimed land and possessed thereon that led to dismiss the suit.

All in all, we don't find any illegality or impropriety in the impugned judgment and decree passed by the courts below which warrants any interference by this court.

In the result, the rule is discharged however without any order as to costs.

The impugned judgment and decree passed in Title Appeal No. 109 of 2003 is thus upheld and thereby the judgment and decree passed in Title Suit No. 207 of 1988 and modified in Title Appeal No. 109 of 2003 thus stands.

The order of stay granted at the time of issuance of the rule thus stands recalled and vacated.

Let a copy of this judgment along with the lower court records be transmitted to the court concerned forthwith.

Md. Bashir Ullah, J:

I agree.